IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No.303

CP(CAA)/10(AHM)2023
in
CA(CAA)/68(AHM)2022

Order under Section 230-232 of Co. Act, 2013

IN THE MATTER OF:

Dhanesh Enterprise Pvt. Ltd. **.....Applicants**
Jenil Enterprise Pvt. Ltd.

Order delivered on 16/10/2023

Coram:

Mrs. Chitra Hankare, Hon'ble Member(J)
Dr. Velamur G Venkata Chalapathy, Hon'ble Member(T)

ORDER

The case is fixed for pronouncement of order. The order is pronounced in open Court, vide separate sheet.

-Sd- -Sd-

DR. V. G. VENKATA CHALAPATHY
MEMBER (TECHNICAL)

CHITRA HANKARE
MEMBER (JUDICIAL)

NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT-2

CP(CAA)/10(AHM)2023
in
CA(CAA)/68(AHM)2022

[Application under Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016]

Scheme of Arrangement

of

Dhanesh Enterprise Private Limited
(Petitioner Company No. 1/Transferor Company)

with

Jenil Enterprise Private Limited
(Petitioner Company No. 2/Transferee Company)

And

Their respective Shareholders and Creditors

Order pronounced on: 16.10.2023

Coram:
MRS. CHITRA HANKARE
MEMBER (JUDICIAL)

DR. VELAMUR G VENKATA CHALAPATHY
MEMBER (TECHNICAL)

In the matter of:

Dhanesh Enterprise Private Limited
A company incorporated under the
Provisions of the Companies Act, 1956
Having its registered office situated at
Survey No. 192/1, 192/2, 193, 194,
Udhna Navsari Road,
Bhestan,Gujarat-395023. ....Petitioner Company No.1/
Transferor Company

with

Jenil Enterprise Private Limited
A company incorporated under the
Provisions of the Companies Act, 2013
Having its registered office situated at
Survey No.91, Opp. Navin Fluorine,
Udhna Navsari Road,
Bhestan, Gujarat-395023 .....Petitioner Company No.2/
Transferee Company

Appearance:

For the Petitioners : Mr. Ravi Pahwa, Advocate on behalf of Thakkar & Pahwa, Advocates.

ORDER

1. The present Petition has been filed by the petitioner companies under Sections 230-232 of the Companies Act, 2013 read with companies (Compromise, Arrangement and Amalgamations) Rules, 2016 seeking approval of the Scheme of Amalgamation with effect from 01.04.2022.

2. An Affidavit in support of the above joint petition has been sworn by Vishadkumar Jayantilal Jariwala on behalf of

Petitioner Company 1, who is the Authorized Signatory appointed vide Board Resolution dated 15.11.2022 of the Petitioner Company No.1

3. An Affidavit in support of the above joint petition has been sworn by Bipinchandra Kabutarwala on behalf of Petitioner Company 2, who is the Authorized Signatory appointed vide Board Resolution dated 15.11.2022 of the Petitioner Company No.2.

4. The Petitioner Companies had filed a joint Company Application before this Tribunal being CA (CAA) No. 68 of 2022, inter alia, seeking dispensation of meeting of Equity Shareholders of both the Petitioner Companies, seeking declaration that since there are no Secured and Unsecured Creditors in the Petitioner Company No.1 and no Secured Creditors in Petitioner Company No.2, there is no question of holding the meetings of Creditors in the Petitioner Company No.1 and no question of holding the meeting of the Unsecured Creditors in the Petitioner Company No.2; and seeking directions for convening and holding of the meetings of Unsecured Creditors of Petitioner Company No.2 and give consequential directions. Said petition was allowed.

5. This Tribunal had appointed Mr. Chetan M. Gandhi, Advocate and in his absence Ms. Payal Yogeshkumar Gandhi, Advocat as the Chairman/ Chairperson of the aforesaid meeting and gave further directions to comply with various stipulations contained in the Order including filing of the Chairman's Report. In compliance of the order dated 17.01.2023 passed by this Tribunal in CA (CAA) No. 68 of 2022, the petitioner companies sent notices to statutory authorities. Further, notice of the

meeting was sent to the Unsecured Creditors of Petitioner Company 2 as required by the order together with a copy of the Scheme of Amalgamation and of the statement required by Section 230 of the Companies Act, 2013. The petitioner companies also published advertisement about convening of the meetings in 'Indian Express' in English and in "Sandesh" in Vernacular language, both in Surat Edition on 23.1.2023. The Petitioner Companies filed affidavit of service of notice of meetings, publication of notice in the local dailies and affidavit regarding service of notice to the statutory authorities with this Tribunal.

6. In compliance with the directions for convening the meeting of Unsecured Creditors of Petitioner Company 2, meeting was duly convened on 25.2.2023 for the Unsecured Creditors of the Petitioner Company 2. The Chairman appointed for the said meeting has filed his report on 03.03.2023. The said report confirms the approval to the proposed Scheme unanimously by the Unsecured Creditors of the Petitioner Company 2. It is submitted that thus, all the stakeholders have approved the Scheme of Amalgamation with requisite majority.

7. In response to the notice served upon the Regional Director (RD), a Representation dated 05.04.2023 was filed by the RD, North-Western Region, along with the report from the Registrar of Companies (RoC) dated 13.03.2023. Following are the observations of RD and RoC:-

i. To direct the petitioner companies to undertake the compliance of Section 232(3)(i) of the Companies Act, 2013.

Compliance by the applicants

The petitioner companies undertake to comply with the provisions of Section 232(3)(i) of the Companies Act, 2013.

ii. That there is requirement to increase in the authorized capital of the petitioner transferee company. Therefore, to direct the petitioner transferee company to comply with the provision of Section 61 of the Companies Act, 2013.

Compliance by the Transferee Company

The Transferee Company undertakes to comply with the provisions of Section 61 of the Companies Act, 2013.

iii. That as per the report of the Registrar of Companies, there are no complaints against the petitioner companies and also there is no complaint / representation against the Scheme of Amalgamation.

8. In response to the notice to the Official Liquidator (OL), the OL has made a representation in relation to Petitioner Company 1-Transferor Company vide letter dated 27.3.2023. The Official Liquidator has made the following observations:-

The petitioner companies on 18.05.2023 filed their response to the observations of OL vide reply in affidavit dated 05.05.2023.

i. That the Transferor Company is having its subsidiary companies, which appears to be have been a foreign company, wherein the transferor company had made investment in shares. Therefore, this Hon'ble may be pleased to direct the petitioner transferor company to comply with the provisions FEMA and/or RBI.

Compliance by the Transferor Company

The Transferor Company undertakes to comply with the provisions of FEMA and/or RBI.

ii. To direct the Transferor Company to preserve its books of account, papers and records and shall not be disposed the same without prior permission of Central Government as per the provision of Section 239 of the Act.

Compliance by the Transferor Company

The Transferor Company undertakes to preserve books of account, papers and records as required by law and shall not dispose the same without prior permission of Central Government as per the provision of Section 239 of the Act.

iii. To direct the Transferor Company to ensure Statutory compliance of all applicable laws and also on sanctioning of the present Scheme, the Transferor Company shall not be absolved from any of its statutory liabilities, in any manner.

Compliance by the Transferor Company

The Transferor Company undertakes to comply with all statutory compliances of all the applicable laws.

iv. The Transferor Company may be dissolved without following the process of winding-up in terms of sub-section 3(d) of Section 232 of the Companies Act, 2013. Further the Transferor Company being dissolved, the fee, if any, paid by the Transferor Company on its Authorized Share Capital shall be set-off against any fees payable by the Transferee Company on its Authorized Capital subsequent to the amalgamation in terms of sub section 3(i) of Section 232 of Companies Act, 2013

9. In response to the notice served upon the Income Tax Department, the Income Tax Department filed its report dated 27.04.2023, through its Ld. Counsel on 28.04.2023, wherein it is stated that as per the data available on TBA, there is no outstanding demand or proceeding pending in the case of Jenil Enterprise Pvt. Ltd.

10. During the hearing on 02.05.2023, Learned Counsel Ms. Pankti Shah appeared for the Income Tax Department and stated that there are outstanding dues against the Transferor Company. Ld. Counsel Mr. Ravi Pahwa for the petitioner companies stated that the Transferee Company undertakes to take up liabilities of the Transferor Company and undertakes to pay outstanding tax demand as per law. Subject to the statement made by the Ld. Counsel for the petitioner companies, Ld. Counsel for the Income Tax Department stated that she has no objection to the approval of the scheme.

11. The Petitioner Companies thereafter filed second motion joint petition being CP (CAA) No. 10/NCLT/AHM/2023 before this Tribunal seeking sanction of the Scheme.

12. This Tribunal, by order dated 22.03.2023 admitted the aforesaid petition and directed issuance of notices to the Regional Director, the Registrar of Companies, Income Tax Authority and the Official Liquidator (in case of Petitioner Company 1-Transferor Company) informing the date of hearing. Pursuant to the order dated 22.03.2023 passed by the Tribunal, the petitioner companies published the notice of hearing of the petition in "Indian Express" in English and in "Sandesh" in Vernacular language both in Surat edition. The notice in respect of hearing of the Company Petition was served upon all concerned statutory authorities. Affidavit to that effect is also filed by the petitioner companies on this Tribunal.

13. Pursuant to the order dated 22.03.2023 and issuance of notices to the statutory authorities and publication of the notice in the local dailies, no representation is received.

14. It is submitted that no winding up proceedings have been filed or are pending against the petitioner companies under the Companies Act, 2013 or under the corresponding provisions of the Companies Act, 1956.

15. It is submitted that the Statutory Auditor of the Petitioner Companies has certified that the Accounting Treatment of the Scheme is in conformity with the Accounting Standards prescribed under Section 133 of the Companies Act, 2013.

Copies of the certificates issued by the statutory auditors are produced on record.

16. The Petitioner Companies have stated in the Petition that no inspection or investigation has been instituted or is pending against any of the petitioner companies under the provisions of the Companies Act, 2013. It was also stated that if there is any deficiency found, or violation committed of any enactment, statutory rules or regulations, the sanction granted by the Tribunal to the scheme will not come in the way of action being taken in accordance with law, against the concerned persons, directors and officials of the petitioner companies.

17. We have heard Ld. Counsel Mr. Ravi Pahwa for the Petitioner Companies and also gone through the records.

18. On the basis of above facts and submissions made by the Learned Counsel and by considering the entire facts and circumstances of the aforesaid company petition and on perusal of the Scheme and the proceedings, it appears that the requirements of the provisions of section 230 and 232 are satisfied by the petitioner companies. We are of the considered view that the proposed Scheme of Amalgamation is bona fide and in the interest of the shareholders and creditors. In the result, Company Petition No. CP (CAA) No. 10 of 2023 is allowed. The Scheme envisages Arrangement between Jenil Enterprise Private Limited and Dhanesh Enterprise Private Limited and their respective shareholders and creditors. It is declared that the said sanctioned scheme shall be binding on the petitioner companies

and their shareholders, creditors and all concerned under the scheme.

19. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of the petitioners.

20. While approving the Scheme as above, we further clarify that this order should not be construed as an order in granting any exemption from payment of stamp duty, taxes including income tax, GST, etc. or any other charges, if any, and payment in accordance with law or in respect of any permission/compliance with any other requirement which may be specifically required under any law.

21. It is further clarified that Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and sanction of the Scheme of arrangement given hereunder shall not adversely affect the rights of Income Tax Department on any past, present or future proceedings.

22. This Tribunal orders as under:-

(i) The Transferor Company is directed to comply with the provisions of FEMA guidelines.

(ii) The Scheme of Amalgamation as annexed herewith as

"Annexure A" is hereby sanctioned and it is declared that the same shall be binding on the Petitioner Companies and their Shareholders and Creditors and all concerned under the Scheme.

(iii) It is declared that the Transferor Company shall be dissolved without winding up.

(iv) All the property annexed herewith as **"Annexure B"**, right and powers of the Transferor Company specified in the schedule hereto and all the other property, rights and powers of the Transferor Company be transferred without further act or deed to the Transferee Company and accordingly the same shall pursuant to Section 232 of the Act, be transferred to and vested in the Transferee Company for all the estates and interest of the Transferor Company therein.

(v) All proceedings, if any, now pending against the Transferor Company be continued by or against the Transferee Company.

(vi) All workers / employees of all the Transferor Company shall be deemed to become the workers /employees of the Transferee Company with effect from the Appointed Date, and shall stand absorbed in the Transferee Company in accordance with the Scheme without any interruption of service and on terms and conditions no less favourable than those on which they are engaged by the Transferor Company, as on the Effective Date.

(vii) The Transferee Company shall, without further application, allot 1032 Equity Shares of the Transferee Company at the face value of Rs. 10/- each, credited as

fully paid-up for every 174 equity shares of Rs. 10/- each fully paid-up held by such member in the Transferor Company as on the Record Date.

(viii) The Petitioner Companies are directed to lodge a copy of this Order and the approved Scheme duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for adjudication of stamp duty, and pay requisite stamp duty payable, if any, within 60 days from the date of this Order.

(ix) All concerned Authorities to act on copy of this order along with the Scheme authenticated by the Registrar of this Tribunal shall issue the certified copy of this order along with the Scheme.

(x) The Petitioner Companies are directed to lodge a copy of this Order and the approved Scheme and Schedule of Assets attached as Annexure-A and Annexure-B with this order, duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty, if any, within 60 days from the date of the Order.

(xi) The Petitioner Companies are further directed to file a copy of this order along with the copy of the Scheme with the concerned the Registrar of Companies, electronically, along with e-form INC-28 in addition to physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

(xii) The legal fees and expenses of the office of the Regional

Director is quantified at Rs.10,000/- in respect of each of the Petitioner Companies. The said fees to the Regional Director shall be paid by the Transferee Company.

(xiii) The legal fees and expenses of the office of the Official Liquidator are quantified at Rs.10,000/- in respect of the Transferor Company. The said fees of the Official Liquidator shall be paid by the Transferee Company.

(xiv) Filing and issuance of drawn up orders are dispensed with. All concerned authorities to act on a copy of this order along with the Scheme duly authenticated by the Registrar of this Tribunal. The Registrar of this Tribunal shall issue the authenticated copy of this order alongwith Scheme immediately.

(xv) The Petitioner Companies have filed an undertaking by way of affidavit with respect to the pending demand dues of the Income Tax Department that they will pay the same subject to legal remedies availed by them.

(xvi) Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and if it is found that the Scheme of Arrangement ultimately results in tax avoidance or is not in accordance with the applicable provisions of Income Tax Act, then the Income Tax Dept. shall be at liberty to initiate appropriate course of action as per law. Any sanction of the Scheme of Arrangement under Sections 230-232 of the Companies Act, 2013 shall not adversely affect the rights of Income Tax Department or any past, present or future proceedings and the sanction of the scheme shall not come in its way for the appropriate course of action as per

law for the tax liabilities, if any.

(xvii) Any person aggrieved shall be at liberty to apply to the Tribunal in the above matter for any direction that may be necessary.

23. The Company Petition CP (CAA) No. 10 of 2023 connected with CA (CAA) No. 68 of 2022 is disposed of, in terms of the above order.

-Sd-
DR. V.G. VENKATA CHALAPATHY
MEMBER (TECHNICAL)

-Sd-
CHITRA HANKARE
MEMBER (JUDICIAL)

sr/ks

Annexure-A

196

SCHEME OF AMALGAMATION

OF

DHANESH ENTERPRISE PRIVATE LIMITED

WITH

JENIL ENTERPRISE PRIVATE LIMITED

AND

THEIR RESPECTIVE SHAREHOLDERS

This Scheme of Amalgamation is presented for the amalgamation of Dhanesh Enterprise Private Limited with Jenil Enterprise Private Limited pursuant to sections 230-232 of the Companies Act, 2013.

1. **DEFINITIONS**

In this Scheme, unless repugnant to the meaning or context thereof, the following expressions shall have the meaning as under:-

1.1 Act' means the Companies Act, 2013, the rules and regulations made thereunder and will include any statutory modification or re-enactment or amendment thereof for the time being in force, except to the extent the provision which are still applicable as per the Companies Act, 1956 and/or any statutory modification or re-enactment or amendment thereof for the time being in force;

1.2 "The Amalgamation" means the transfer and vesting of undertaking of the Transferor Company into the Transferee Company in accordance with the Scheme.

1.3 'Tribunal' means the National Company Law Tribunal or any other judicial forum prescribed under the provisions of the Companies Act, 2013 for approving any Scheme of arrangement, compromise or reconstruction of companies under sections 230 to 232 of the Companies Act, 2013.

NOTARY ... (GUJ.) ... Dt 11-02-2024

1.4 "The Appointed Date" means April 01, 2022 or such other date as the Hon'ble Tribunal, Ahmedabad, may direct.

FOR DHANESH ENTERPRISE PVT LTD
DIRECTOR / AUTHORISED SIGN.
FOR DHANESH ENTERPRISE PVT. LTD.
DIRECTOR/AUTHORISED SIGNATORY

For JENIL ENTERPRISE PVT. LTD
DIRECTOR / AUTHORISED SIGN.
For Jenil Enterprise Pvt Ltd
Authorised Signatory

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

1.5 "The Effective Date" means the last date on which Certified Copies of the orders of Hon'ble Tribunal sanctioning the scheme of amalgamation and for vesting the undertaking including the assets, liabilities, rights, duties, obligations and the like of the Transferor Company in the Transferee Company are filed with the office of the Registrar of Companies, Gujarat.

1.6 "The Scheme" means this Scheme of Amalgamation in its present form or with any modifications approved or imposed or directed by the Hon'ble Tribunal, Ahmedabad.

1.7 "The Transferee Company" shall mean Jenil Enterprise Private Limited (CIN: U45203GJ2014PTC081152), a Company incorporated under the Act, having its registered office at Survey No.91, Opp. Navin Fluorine, Udhna Navsari Road, Bhestan, Gujarat, India - 395023

1.8 "The Transferor Company" shall mean Dhanesh Enterprise Private Limited (CIN: U45201GJ2003PTC042773), a company incorporated under the Act, having its registered office at Survey No. 192/1,192/2,193, 194, Udhna Navsari Road, Bhestan, Surat ,Gujarat, India - 395023

1.9 "The Undertaking" shall mean:

a) all the assets and properties of the Transferor Company as on the Appointed Date.

b) all the debts, liabilities, reserves, duties and obligations of the Transferor Company as on the Appointed Date.

c) without prejudice to the generality of Sub-clause (a) above the undertaking of the transferor company shall include all the transferor companys', provisions, funds, moveable and immovable properties, assets including investments, claims, powers, authorities, authorised capital, allotment, approvals, consents, registrations, contracts, enactments, deferred income, arrangements, rights, titles, interest, benefits, advantages, lease-hold rights and other intangible rights,

NOTARY ... (GUJ.) ... 711 ... 02-2024 ... OF GUJARAT (INDIA)

FOR DHANESH ENTERPRISE PVT LTD
DIRECTOR / AUTHORISED SIGN
FOR DHANESH ENTERPRISE PVT. LTD.
DIRECTOR/AUTHORISED SIGNATORY

For JENIL ENTERPRISE PVT. LTD
DIRECTOR / AUTHORISED SIGN.
For Jenil Enterprise Pvt Ltd
Authorised Signatory

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

industrial and all licences, permits, pre & post authorisations, quota, rights, trade marks, patents, brands, secret formulae, drawings, research rights and other industrial intellectual properties, imports, telephone/facsimile/telex and other communication facilities, Electrical Connections, non conventional devices and equipments including Computers, Hardwares, Softwares, and other electronic equipments and instruments, system of any kind whatsoever, rights and benefits of all agreements and other interests including rights & benefits under various schemes of different Taxation Laws as may belong to or be available to the Transferor Company, rights and powers of every kind, nature and description of whatsoever probabilities, liberties, easements, advantages, and approval of whatsoever nature and wheresoever situated, belonging to or in ownership, power or possession or control or entitlement of the Transferor Company.

The expressions which are used in this Scheme and not defined in this Scheme shall, unless repugnant or contrary to the context or meaning hereof, have the same meaning as ascribed to them under the Act and other applicable laws, Articles of Association, rules, regulations, bye-laws, as the case may be, or any statutory modifications or re-enactment thereof from time to time.

2. SHARE CAPITAL

2.1 The Authorised Share Capital Of Jenil Enterprise Private Limited as on March 31, 2022 is as under:-

Particulars	*Amount (INR)*
Authorised share capital	
50,00,000 Equity shares of ₹ 10/- each	5,00,00,000
TOTAL	**5,00,00,000**
Issued, subscribed and paid-up share capital	
49,90,000 Fully Paid Equity shares of ₹ 10/- each	4,99,00,000
TOTAL	**4,99,00,000**

NOTARY ... GOVT. OF GUJARAT (INDIA) ... REG.NO.711 ... Expiry Dt 11-02-2024

FOR DHANESH ENTERPRISE PVT LTD
DIRECTOR / AUTHORISED SIGN

For JENIL ENTERPRISE PVT. LTD
DIRECTOR / AUTHORISED SIGN.

FOR DHANESH ENTERPRISE PVT. LTD.
DIRECTOR/AUTHORISED SIGNATORY

For Jenil Enterprise Pvt Ltd
Authorised Signatory

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

2.2 The Authorised Share Capital of Dhanesh Enterprise Private Limited as on March 31, 2022 is as under:-

Particulars	*Amount (INR)*
Authorised share capital	
10,00,000 Equity shares of `10/- each	1,00,00,000
TOTAL	**1,00,00,000**
Issued, subscribed and paid-up share capital	
8,67,500 Equity shares of ` 10/- each fully paid up	86,75,000
TOTAL	**86,75,000**

3. RATIONALE AND OBJECTIVES OF THE SCHEME OF AMALGAMATION

With a view to rationalize and consolidate the business activities of the Companies, the present Scheme is proposed. The proposed merger of Transferor and Transferee Company will benefit both the Companies in the following manner:-

(a) The merger will consolidate the business activity and will lead to greater efficiency in the overall business and achieve integration of the business operations as well as synergy benefits through combined operations of both the entities.

(b) The contemplated merger will lead to economies of scale which in turn will promote cost efficiency by means of reduction in administrative overheads, reduction in multiplicity of legal and regulatory compliances, and help run the business more effectively and economically resulting in better utilization of resources.

(c) The proposed amalgamation will contribute in fulfilling and furthering the objects of the companies. It will strengthen, consolidate and stabilize the business of these companies and will facilitate further expansion and growth of their business.

(d) The proposed amalgamation shall improve the efficiency in cash management, organizational capability from pooling of human capital having skill, talents and vast experience and thereby increase competitiveness in the industry.

(e) The Transferee Company will have benefit of the combined assets and man-power of both the companies. The combined resources will

NOTARY GOVT. OF GUJARAT (INDIA) Expiry Dt 11-02-2024

FOR DHANESH ENTERPRISE PVT. LTD.
DIRECTOR / AUTHORISED SIGN.

For JENIL ENTERPRISE PVT. LTD
DIRECTOR / AUTHORISED SIGN.

FOR DHANESH ENTERPRISE PVT. LTD.
DIRECTOR/AUTHORISED SIGNATORY

For Jenil Enterprise Pvt Ltd
Authorised Signatory

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

enhance its capability to expand and increase its market share more effectively.

(f) The proposed amalgamation will create enhanced value for shareholders and allow a focused strategy in operations, which would be in the best interest of all its shareholders, creditors and all persons connected with the companies.

4. **TRANSFER AND VESTING OF UNDERTAKING**

4.1 With effect from the Appointed Date and subject to the provisions of this scheme in relation to the mode of transfer and vesting, the Undertaking of the Transferor Company shall, without any further act or deed, be and the same shall stand transferred to and vested in or deemed to have been transferred to or vested in the Transferee Company pursuant to the provisions of section 232 of the Companies Act, 2013 and other applicable provisions of the Act.

4.2 With effect from the Appointed Date and subject to the provisions of this Scheme and pursuant to the provisions of sections 230 to 232 of the Companies Act, 2013 other applicable provisions of the Act and in relation to the mode of transfer and vesting, all the assets and properties, rights, claims, title, interest, hereditaments and authorities including accretions and appurtenances thereto such as dividends, or other benefits received of the Transferor Company shall, without any further act, instrument or deed, be and the same shall stand transferred to and / or vested in or be deemed to have been and stand transferred to or vested in the Transferee Company as a going concern so as to become as and from the Appointed Date, the estate, rights, titles, hereditaments and interests and authorities including accretions and appurtenances thereto such as dividends, or other benefits receivable by that of the Transferee Company.

NOTARY ABHIKUMAR ... (GUJ.) Reg.No. 711 Expiry Dt 11-02-2024 GOVT. OF GUJARAT (INDIA)

4.3 With effect from the Appointed Date, and subject to the provisions of this Scheme, all the debts, liabilities, reserves, duties and obligations of the Transferor Company, shall also be and shall stand transferred or deemed to

FOR DHANESH ENTERPRISE PVT LTD
DIRECTOR / AUTHORISED SIGN.
FOR DHANESH ENTERPRISE PVT. LTD.
DIRECTOR/AUTHORISED SIGNATORY

For JENIL ENTERPRISE PVT. LTD
DIRECTOR / AUTHORISED SIGN.
For Jenil Enterprise Pvt Ltd
Authorised Signatory

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD BENCH

have been transferred without any further act, instrument or deed to the Transferee Company, pursuant to the provisions of Section 232 of the Companies Act, 2013 so as to become as and from the Appointed Date, the debts, liabilities, reserves, duties and obligations of the Transferee Company and further that it shall not be necessary to obtain consent of any third party or other person who is a party to the contract or arrangements by virtue of which such debts, liabilities, , reserves, duties and obligations have arisen, in order to give effect to the provisions of this Clause.

4.4 Without prejudice to the generality of Clause 4.1 above, the undertaking of the Transferor Company shall mean and include inter alia all the relatable properties and assets including land and buildings, plant and machinery, vehicles, current assets, cash and bank balances, stock-in-trade, work-in-progress, goodwill and other intangibles, investments, rights, titles, interests, powers, authorities, licenses, contracts, tax deducted at source by vendors/ banks/ and receivable by the said company as reflected in Form 26AS on NSDL Income Tax Website as well as those evidences by the valid TDS certificate and other Tax Credits including tax credit available under section 115JAA of the Income Tax Act 1961 and registrations of whatsoever nature including, without being limited to all patents, trade marks, trade names, know-how and other intellectual property rights of whatsoever nature and licenses in respect thereof, privileges, liberties, easements, advantages, benefits, leases, tenancy rights, ownership flats, quota rights, permits, approvals, authorizations, right to use of telephone, telexes, fax machines, e-mail, internet, electricity connections, utilities and other services etc. (hereinafter collectively referred to as "the said assets") pertaining to the undertaking of the Transferor Company.

(a) It is expressly provided that in respect of such of the said assets as are movable in nature or are otherwise capable of transfer by manual delivery or by endorsement and delivery, the same shall be so

NOTARY GOVT. OF GUJARAT

FOR DHANESH ENTERPRISE PVT LTD
DIRECTOR / AUTHORISED SIGN
FOR DHANESH ENTERPRISE PVT. LTD.
DIRECTOR/AUTHORISED SIGNATORY

For JENIL ENTERPRISE PVT. LTD
DIRECTOR / AUTHORISED SIGN.
For Jenil Enterprise Pvt Ltd
Authorised Signatory

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD BENCH

transferred by the Transferor Company and shall become the property of the Transferee Company in pursuance of the provisions of Section 232 of the Companies Act,2013.

(b) In respect of such of the said assets other than those referred to in sub para (a) above, the same shall, as more particularly provided in sub-clause 4.4 above, without any further act, instrument or deed, be transferred to and vested in and/or be deemed to be transferred and vested in the Transferee Company on the Appointed Date pursuant to the provisions of Section 232 of the Companies Act,2013.

4.5 Loans or other obligations, if any, due or outstanding inter se between the Transferor Company and the Transferee Company shall stand discharged and there shall be no liability, relating either to principal or to interest after the Appointed Date, in respect of such loans and other obligations.

4.6 With effect from the Appointed Date, all taxes relating to the Transferor Company, payable by the Transferor Company including all or any refunds of claims shall be treated as the tax liabilities or refunds/claims as the case may be of Transferee Company.

4.7 The Transferee Company shall be entitled to file/ revise their statutory returns and related tax payment certificates and to claim refunds, advance tax credits etc. as may be required consequent to the implementation of the Scheme.

NOTARY ASHOK KUMAR No. 711 Expiry Dt. 11-02-2024 GOVT. OF GUJARAT (INDIA)

4.8 The Transferee Company may, at any time after the coming into effect of this Scheme in accordance with the provisions hereof, if so required, under any law or otherwise, execute deeds of confirmation in favour of the secured creditors of the Transferor Company or in favour of any other party to any contract or arrangement to which the Transferor Company is a party or any writing as may be necessary to execute in order to give formal effect to the above provisions. The Transferee Company shall under the

FOR DHANESH ENTERPRISE PVT LTD
DIRECTOR / AUTHORISED SIGN
FOR DHANESH ENTERPRISE PVT. LTD.
DIRECTOR/AUTHORISED SIGNATORY

For JENIL ENTERPRISE PVT. LTD
DIRECTOR / AUTHORISED SIGN.
For Jenil Enterprise Pvt Ltd
Authorised Signatory

provisions of this Scheme be deemed to be authorized to execute any such writings on behalf of the Transferor Company as the case may be and to implement or carry out all such formalities or compliances as are required to be carried out or performed by the Transferor Company under any loan agreements or contracts or otherwise.

4.9 For the avoidance of doubt and without prejudice to the generality of the forgoing, it is clarified that upon coming into effect of the scheme, all consents, permissions, licenses, certificates, forms, clearances, authorities, powers of attorneys given/issued to executed in favour of the Transferor Company shall without any further Act or deed, stand transferred to the Transferee Company as if the same were originally given by, issued to or executed in favour of the Transferee Company and the Transferee Company shall be bound by the terms thereof, the obligations and the duties there under and the rights and benefits under the same shall be available to the Transferee Company. The Transferee Company shall receive relevant approval from the concerned governmental authorities as may be necessary in this behalf.

5. CONTRACTS, DEEDS, BONDS AND OTHER INSTRUMENTS

5.1 Subject to all the provisions of this Scheme, all contracts, deeds, bonds, agreements, arrangements and other instruments of whatsoever nature to which the Transferor Company is party or to the benefit of which the Transferor Company may be eligible and which are subsisting or having effect immediately before the Effective Date, shall be in full force and effect against or in favour of the Transferee Company as the case may be and may be enforced as fully and effectively as if, instead of the said Transferor Company, the Transferee Company had been a party or beneficiary thereto.

NOTARY ★ GOVT. OF GUJARAT (INDIA) ★ CITY (GUJ.) Reg.No.711 Expiry Dtnd 11-02-2024

5.2 The Transferee Company may, at any time after the coming into effect of this Scheme in accordance with the provisions hereof, if so required, under

FOR DHANESH ENTERPRISE PVT LTD
DIRECTOR / AUTHORISED SIGN.
FOR DHANESH ENTERPRISE PVT. LTD.
DIRECTOR/AUTHORISED SIGNATORY

For JENIL ENTERPRISE PVT. LTD
DIRECTOR / AUTHORISED SIGN.
For Jenil Enterprise Pvt Ltd
Authorised Signatory

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

any law or otherwise, execute deeds, writings or confirmations or enter into a tri-partite arrangement, confirmation or novation to which the respective Transferor Company will, as may be necessary also be a party in order to give formal effect to this Clause if so required or become necessary. The Transferee Company shall, under the provisions of this Scheme, be deemed to be authorised to execute any such writings on behalf of the Transferor Company and to carry out or perform all such formalities or compliances referred to above on the part of the respective Transferor Company.

6. **LEGAL PROCEEDINGS**

If any suit, petition, appeal, revision or other proceedings of whatsoever nature (hereinafter called "the proceedings") by or against the Transferor Company be pending, the same shall not abate, be discontinued or be in any way prejudicially affected by reason of the transfer of the undertaking of the Transferor Company or of anything contained in the Scheme, but the proceedings may be continued, prosecuted and enforced by or against the Transferee Company in the same manner and to the same extent as it would be or might have been continued, prosecuted and enforced by or against the Transferor Company as if the Scheme had not been made. On and from the Effective Date, the Transferee Company shall and may initiate any legal proceedings for and on behalf of the Transferor Company or either of them as the case may be in its own name.

7. **OPERATIVE DATE OF THE SCHEME**

The Scheme, set out herein in its present form or with any modification(s) approved or imposed or directed by the Hon'ble Tribunal, Ahmedabad, shall although operative from the Appointed Date, shall become effective from the Effective Date.

NOTARY ... CITY (GUJ.) ... Expiry Dt 11-02-2024 ... GOVT. OF GUJARAT (INDIA)

8. **TRANSFEROR COMPANY STAFF, WORKMEN AND EMPLOYEES**

All the staff, workmen or other employees, if any, in the service of the Transferor Company immediately preceding the Effective Date shall

FOR DHANESH ENTERPRISE PVT LTD
DIRECTOR / AUTHORISED SIGN
FOR DHANESH ENTERPRISE PVT. LTD.
DIRECTOR/AUTHORISED SIGNATORY

For JENIL ENTERPRISE PVT. LTD
DIRECTOR / AUTHORISED SIGN.
For Jenil Enterprise Pvt Ltd
Authorised Signatory

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

become the staff, workmen and employees of the Transferee Company on the basis that :

8.1 Their services shall be deemed to have been continuous and not have been interrupted by reason of the said transfer.

8.2 The terms and conditions of service applicable to such staff, workmen or employees after such transfer shall not in any way be less favourable to them than those applicable to them immediately preceeding the transfer date.

8.3 The Transferor Company shall not vary the terms and conditions of the service of their staff, workmen and employees except in the ordinary course of business.

8.4 It is expressly provided that as far as Provident Fund, Gratuity Fund, Superannuation Fund or any other Fund created or existing for the benefit of the staff, workmen and other employees of the Transferor Company is concerned, upon the Scheme becoming effective, the Transferee Company shall (to the extent of the services of the Transferred Employees) stand substituted for the Transferor Company for all purposes whatsoever relating to the administration or operation of such Funds or in relation to the obligation to make contributions to the said Funds in accordance with provisions of such Funds as per the terms provided in the respective Trust Deeds. It is the aim and intent that all the rights, duties, powers and obligations of the Transferor Company in relation to such Funds shall become those of the Transferee Company and all the rights, duties and benefits of the employees of the Transferor Company under such Funds and provisions shall be protected. It is clarified that the services of the employees of the Transferor Company will also be treated as having been continuous and shall not be treated as having been broken for the purpose of the aforesaid Funds or provisions.

NOTARY GOVT. OF GUJARAT (INDIA) (GUJ.) 0.711 Expiry Dt rus 11-02-2024

FOR DHANESH ENTERPRISE PVT LTD
DIRECTOR / AUTHORISED SIGN.
FOR DHANESH ENTERPRISE PVT. LTD.
DIRECTOR/AUTHORISED SIGNATORY

For JENIL ENTERPRISE PVT. LTD
DIRECTOR / AUTHORISED SIGN.
For Jenil Enterprise Pvt Ltd
Authorised Signatory

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

9. CONDUCT OF BUSINESS BY TRANSFEROR COMPANY TILL EFFECTIVE DATE

With effect from the Appointed Date and upto the Effective Date:

9.1 The Transferor Company shall carry on and be deemed to have carried on all its business and activities and shall be deemed to have held and stood possessed of and shall hold and stand possessed of all the said assets for and on account of and in trust for the Transferee Company.

9.2 All the profits or incomes accruing to the Transferor Company or losses or expenditure arising or incurred by it shall, for all purposes, be treated as the profits or incomes or losses or expenditure of the Transferee Company as the case may be.

9.3 The Transferor Company shall carry on its business activities, with reasonable diligence, business prudence and shall not, without the written consent of Board of Directors of the Transferee Company, alienate, charge, mortgage, encumber or otherwise deal with the said assets or any part thereof except in the ordinary course of their business except pursuant to any pre-existing obligation undertaken by the Transferor Company prior to the Appointed Date.

9.4 The Transferor Company shall not, without the written consent of the Board of Directors of the Transferee Company, undertake any new business.

NOTARY ★ GOVT. OF GUJARAT (INDIA) ★ KUMAR ... RAT CITY (GUJ.) Reg. No. 711 Expiry Dt 11-02-2024

9.5 The Transferor Company shall not vary the terms and conditions of the employment of its employees except in the ordinary course of business and with the mutual consent of the Board of Directors of the Transferee Company.

9.6 The Transferor Company shall not undertake any additional financial commitments of any nature whatsoever, borrow any amounts or incur any

NCLT COMPANY LAW TRIBUNAL

FOR DHANESH ENTERPRISE PVT LTD
DIRECTOR / AUTHORISED SIGN
FOR DHANESH ENTERPRISE PVT. LTD.
DIRECTOR/AUTHORISED SIGNATORY

For JENIL ENTERPRISE PVT. LTD
DIRECTOR / AUTHORISED SIGN
For Jenil Enterprise Pvt Ltd
Authorised Signatory

other liabilities or expenditure without the written consent of the Board of Directors of Transferee Company.

9.7 The Transferor Company shall not make any change in its capital structure (paid up capital) other than changes pursuant to committments, obligations or arrangements subsisting prior to the Appointed Date either by any increase, (by a fresh issue of right shares, convertible debentures or otherwise) or by any decrease, reduction, reclassification, sub division or consolidation, reorganisation or in any other manner which may in any manner affect the Share Exchange Ratio prescribed in Clause 10 except by mutual consent of the Board of Directors of the Transferor Company and Transferee Company.

9.8 The Transferee Company shall be entitled, pending the sanction of the Scheme, to apply to the Central Government and other related agencies, departments and other authorities concerned as are necessary under any law for such consents, licences, permissions, approvals and sanctions which the Transferee Company may require to own and operate the businesses of the Transferor Company.

10. ISSUE OF SHARES BY TRANSFEREE COMPANY

10.1 Upon the Scheme becoming finally effective, in consideration of the transfer and vesting of the Undertaking of the Transferor Company in the Transferee Company in terms of the Scheme, the Transferee Company shall subject to the provisions of the Scheme and without any further application, act or deed, issue and allot at par the Equity Shares of Rs.10/- only (Rupees Ten Only) each credited as fully paid-up in the Capital of the Transferee Company to the Equity shareholders of the Transferor Company whose names appear in the Register of Members of Transferor Company on a date to be fixed by the Board of Directors of the Transferee Company or to such of their respective heirs, executors, administrators or other legal representatives or other successors in title as may be recognized by the

NOTARY ... GOVT. OF GUJARAT (INDIA) ... (GUJ.) ... No.711 ... Dt ... 2024

FOR DHANESH ENTERPRISE PVT. LTD
DIRECTOR / AUTHORISED SIGN.
FOR DHANESH ENTERPRISE PVT. LTD.
DIRECTOR/AUTHORISED SIGNATORY

For JENIL ENTERPRISE PVT. LTD
DIRECTOR / AUTHORISED SIGN.
For Jenil Enterprise Pvt Ltd
Authorised Signatory

NATIONAL COMPANY LAW TRIBUNAL

Board of Directors of the Transferee Company and approved by them to be placed on its register of members in the following stated proportion :

1,032 Equity Shares of Rs.10/- each credited as fully Paid up of the Transferee Company shall be issued and allotted at par against 174 Equity Shares of Rs.10/- each to the Equity Shareholders of Transferor Company.

10.2 Any fraction arising on issue of Equity shares as above will be rounded off to the nearest integer.

10.3 The said new Equity Shares of the Transferee Company to be alloted to the shareholders of the Transferor Company shall be fully paid up shares and shall rank for dividend, voting rights and in all other respects pari passu with the existing Equity Shares in the Transferee Company except that they shall not be eligible for any dividend paid or declared by the Transferee Company prior to the Effective Date.

10.4 Upon such issue and allotment of shares, the Shareholders of the Transferor Company shall surrender the Share Certificates of the Transferor Company held by them to the Transferee Company for exchange thereof. In the default, i.e. Non-compliance with the requirement of aforesaid surrender of the Share Certificates and upon allotment of the new shares in the Transferee Company, the Share Certificates in relation to the Shares held by the shareholders in the Transferor Company shall be deemed to have been cancelled.

10.5 The issue and allotment of Equity Shares in the Transferee Company to the members of the Transferor Company as provided in the Scheme shall be deemed to have been carried out under the provisions of the Act and in accordance with law.

FOR DHANESH ENTERPRISE PVT LTD.

DIRECTOR / AUTHORISED SIGN.

FOR DHANESH ENTERPRISE PVT. LTD.

DIRECTOR/AUTHORISED SIGNATORY

For JENIL ENTERPRISE PVT. LTD

DIRECTOR / AUTHORISED SIGN.

For Jenil Enterprise Pvt Ltd

Authorised Signatory

10.6 The Transferee Company shall take necessary steps to increase or alter, to the extent required, its Authorized Share Capital suitably, if required, to enable it to issue and allot the New Equity Shares pursuant to this Scheme.

11. ACCOUNTING TREATMENT OF ASSETS, LIABILITIES AND RESERVES OF THE TRANSFEROR COMPANY

11.1 Upon the Scheme being effective, the relatable assets and liabilities and reserves of, the Transferor Company shall be transferred to and vested in the books of the Transferee Company at the same values as appearing in the books of the Transferor Company on the Appointed Date.

11.2 The Transferee company shall credit to the share capital account in its books of accounts, the aggregate face value of the new Equity Shares issued and allotted under the scheme to the Equity shareholders of the Transferor Company pursuant to this Scheme

11.3 An amount equal to the balance lying to the credit of "Profit and Loss Account as on the Appointed Date in the books of Transferor Company shall constitute the Transferee Company's free reserve as effectively as if the same were created by the Transferee Company out of its own earned and distributable profits.

11.4 Loans and advances and other dues outstanding between Transferee Company and Transferor Company will stand cancelled and there shall be no further obligation/outstanding in that behalf. Any cancellation of shares shall not be deemed to be reduction of capital for the purposes of the Act and there for no seperate compliances would be necessary.

11.5 The difference in the value of the net assets of the Transferor Company as on Appointed Date and the consideration value determined pursuant to this Scheme, if any, shall be accounted for in the books of the Transferee Company by adjusting the same with the Resesrves of the Transferee

FOR DHANESH ENTERPRISE PVT LTD

DIRECTOR / AUTHORISED SIGN.

For JENIL ENTERPRISE PVT. LTD

DIRECTOR / AUTHORISED SIGN.

FOR DHANESH ENTERPRISE PVT. LTD.

DIRECTOR/AUTHORISED SIGNATORY

For Jenil Enterprise Pvt Ltd

Authorised Signatory

Company as per the Pooling Method prescribed in Accounting Standard-14 issued by The Institute of Chartered Accountants of India.

11.6 In case of any difference in accounting policy between the Transferor Company and the Transferee Company, the impact of the same till the amalgamation will be quantified and adjusted in the Revenue Reserve(s) to ensure that the financial statement of the Transferee Company reflects the financial position on the basis of consistency in the accounting policy.

11.7 Notwithstanding the above, the Board of Directors of the Transferee Company in consultation with its Auditors, is authorized to account any of these balances in any manner whatsoever as may be deemed fit.

12. DIVIDEND, PROFITS, BONUS/RIGHT SHARES BY THE TRANSFEROR COMPANY

Except with the express consent of the Board of Directors of the Transferee Company during the pendency of the present Scheme being sanctioned and upto the Effective Date, the Transferor Company shall not:

12.1 declare any dividend for period commencing from the Appointed Date upto and including the Effective Date.

12.2 issue or allot any right shares or bonus shares out of its authorised or unissued Share Capital for the time being.

13. AMENDMENT TO MEMORANDUM AND ARTICLES OF ASSOCIATION OF THE TRANSFEREE COMPANY

13.1 Capital Clause:

13.1.1 Upon coming into effect of the Scheme, the Authorised Share Capital of the Transferor Company of Rs.1,00,00,000/- (Rupees One crore Only) as mentioned in Clause 2.1, above, or such amount as may be on the Effective Date, shall be added to the Authorised Share Capital of the Transferee Company, as on the Effective Date, without any further act or deed and without any further payment of the stamp duty or the registration

FOR DHANESH ENTERPRISE PVT. LTD.
DIRECTOR / AUTHORISED SIGN

FOR DHANESH ENTERPRISE PVT. LTD.
DIRECTOR/AUTHORISED SIGNATORY

For JENIL ENTERPRISE PVT. LTD
DIRECTOR / AUTHORISED SIGN.

For Jenil Enterprise Pvt Ltd
Authorised Signatory

fees and Clause V of the Memorandum of Association of the Transferee Company shall be replaced as under:-

"The Authorised Share Capital of the Company is Rs. 6,00,00,000 /- (Rupees Six Crores Only) divided into 60,00,000 (Sixty Lakhs Only) Equity Shares of Rs.10/- (Rupees Ten Only) each."

13.1.2 Under the accepted principle of Single Window Clearance, it is hereby provided that the above referred change, viz. Change in the Capital Clause shall become operative on the scheme being effective by virtue of the fact that the Shareholders of the Transferee Company, while approving the scheme as a whole, have also resolved and accorded the relevant consents as required respectively under Sections 17/13, 94/61, 97/64 of the Companies Act, 1956/2013 or any other provisions of the Act and shall not be required to pass separate resolutions as required under the Act.

14. DISSOLUTION OF THE TRANSFEROR COMPANY:

Upon the Scheme being sanctioned as aforesaid, the Transferor Company shall stand dissolved without winding up on such Effective Date on which the order is passed by the Hon'ble Tribunal, Ahmedabad under section 232 of the Companies Act,2013.

15. APPLICATIONS TO THE HON'BLE NATIONAL COMPANY LAW TRIBUNAL

The Transferor Company and the Transferee Company hereto shall, with all reasonable despatch, make applications under sections 230 to 232 of the Companies Act, 2013 to the Hon'ble Tribunal, Ahmedabad, for sanctioning this Scheme of Amalgamation and for dissolution of the Transferor Company without winding up in accordance with the provisions of the Act and the Rules of the Hon'ble Tribunal.

16. MODIFICATIONS / AMENDMENTS TO THE SCHEME

FOR DHANESH ENTERPRISE PVT. LTD.

DIRECTOR / AUTHORISED SIGNATORY

For JENIL ENTERPRISE PVT. LTD

DIRECTOR / AUTHORISED SIGN.

For Jenil Enterprise Pvt Ltd

Authorised Signatory

16.1 The Board of Directors of the Transferor Company and/ or the Transferee Company may pass an appropriate resolution to make any modification/amendment to the Scheme as may be deemed necessary or which may be directed to be so done by the Hon'ble Tribunal, Ahmedabad, and/or any other authorities under the law or which may be found to be otherwise desirable for settling any question, doubt or difficulties that may arise for implementing and/or carrying out the Scheme and may do all such acts, deeds, matters and things as may be necessary, desirable or expedient for putting the Scheme into effect.

16.2 For the purpose of giving effect to the Scheme or to any modification thereof, the Board of Directors of the Transferor Company and/or the Transferee Company are hereby authorised to give such directions and/or to take such steps as may be necessary or desirable including any directions for settling any question or doubt or difficulty whatsoever that may arise.

17. SCHEME CONDITIONAL ON APPROVALS / SANCTIONS

The Scheme is conditional on and subject to the following approvals and the amalgamation shall be deemed to be effective on the date on which the last of such approvals shall have been obtained.

17.1 the approval to the Scheme by the requisite majorities of various class of persons, as applicable of the Companies.

17.2 the sanction of the Hon'ble Tribunal, Ahmedabad under Sections 230 to 232 of the Companies Act, 2013, in favour of the Transferor Company and the Transferee Company and to the necessary Order or Orders under Section 232 of the Companies Act,2013 being obtained.

18. SAVING OF CONCLUDED TRANSACTIONS

The Transfer of undertaking under Clause 4 above and the continuance of proceedings by or against the Transferor Company above shall not affect

FOR DHANESH ENTERPRISE PVT. LTD.

DIRECTOR / AUTHORISED SIGN.

For JENIL ENTERPRISE PVT. LTD

DIRECTOR / AUTHORISED SIGN.

FOR DHANESH ENTERPRISE PVT. LTD.

DIRECTOR/AUTHORISED SIGNATORY

For Jenil Enterprise Pvt Ltd

Authorised Signatory

any transaction or proceedings already concluded by the Transferor Company on or after the Appointed Date till the Effective Date, to the end and intent that the Transferee Company accepts and adopts all acts, deeds and things done and executed by the Transferor Company in respect thereto as done and executed on behalf of itself.

19. EXPENSES CONNECTED WITH THE SCHEME

All costs, charges and expenses of the Transferor Company and Transferee Company respectively in relation to or in connection with this Scheme and of carrying out and completing the terms and provisions of this scheme and/or incidental to the completion of the said Amalgamation of the said Undertaking of the Transferor Company in pursuance of this Scheme, whether identifiable or not with respective Transferee and Transferor Company, shall be borne and paid by the Transferee Company alone.

20. MISCELLENOUS PROVISIONS

20.1 The Scheme, although operative from the Appointed Date, shall take effect from the effective date i.e. the date of filing of the Certified copy of the Order (s) received from the Hon'ble Tribunal, Ahmedabad with the Registrar of Companies, Gujarat upon sanction of the Scheme by the Hon'ble Tribunal, Ahmedabad.

20.2 Till the event of this Scheme being effective, Transferor Company and Transferee Company, shall continue to hold their Annual General Meeting and other meetings in accordance with the relevant laws and shall continue to comply with all their statutory obligations in the same manner, as if this Scheme is not existing.

NOTARY GOVT. OF GUJARAT

FOR DHANESH ENTERPRISE PVT. LTD.

DIRECTOR / AUTHORISED SIGNATORY

For JENIL ENTERPRISE PVT. LTD

DIRECTOR / AUTHORISED SIGN.

For Jenil Enterprise Pvt Ltd

Authorised Signatory

DHANESH ENTERPRISE PRIVATE LIMITED
Reg Office: S N No 192/1 192/2 193 And194 Udhna Navsari Road, Surat.
CIN: U45201GJ2003PTC042773
E-mail id: vinod@colourtex.co.in

1

Annexure-B

Schedule

PART I

PARTICULARS OF FREEHOLD PROPERTIES

(I) LAND

SR. No.	COMPLETE ADDRESS	AREA IN SQ. METERS
1	**T.P.S.No. 48, F.P. No.52, City Survey No. 2869 & 2879, Bhestan, Surat.**	**60444.40**

(II) BUILDING

There are no Building

PART II

PARTICULARS OF LEASEHOLD PROPERTIES

There are no leasehold properties

PART III

A. PARTICULARS OF BANK ACCOUNTS:

BANKS ACCOUNTS

SR. NO.	BANK & BRANCH	TYPE OF ACCOUNT	ACCOUNT NO.
1	IDBI Bank Limited Forum Building, 2nd Floor, Between Canopus Shopping Mall and Citi Bank, Surat-395007	Current	0384103000003377
2	Bank of Baroda	Current	25950200000724

PART IV

A. PARTICULARS OF FIXED DEPOSIT ACCOUNTS:

FIXED DEPOSIT

Sr.No.	Name of the Bank	FDR Nos
1	Bank of Baroda, Surat	25950300005603
2	Bank of Baroda, Surat	25950300005604
3	Bank of Baroda, Surat	25950300005605
4	Bank of Baroda, Surat	25950300005631
5	Bank of Baroda, Surat	259S0300006784
6	Bank of Baroda, Surat	25950300006785
7	Bank of Baroda, Surat	259S0300006891

FOR DHANESH ENTERPRISE PVT. LTD.

DIRECTOR/AUTHORISED SIGNATORY

Sr.No.	Name of the Bank	FDR Nos
8	Bank of Baroda, Surat	25950300006892
9	Bank of Baroda, Surat	25950300007390
10	Bank of Baroda, Surat	259S0300007391
11	Bank of Baroda, Surat	25950300007393
12	Bank of Baroda, Surat	25950300007395
13	Bank of Baroda, Surat	259S0300007396
14	Bank of Baroda, Surat	25950300008201
15	Bank of Baroda, Surat	25950300008206
16	Bank of Baroda, Surat	25950300008212
17	Bank of Baroda, Surat	25950300008216
18	Bank of Baroda, Surat	25950300008224
19	Bank of Baroda, Surat	25950300008231
20	Bank of Baroda, Surat	25950300008741
21	Bank of Baroda, Surat	25950300008744
22	Bank of Baroda, Surat	25950300008750
23	Bank of Baroda, Surat	25950300008752
24	Bank of Baroda, Surat	25950300008758
25	Bank of Baroda, Surat	25950300008760
26	Bank of Baroda, Surat	25950300008765
27	Bank of Baroda, Surat	25950300008768
28	Bank of Baroda, Surat	25950300008772
29	Bank of Baroda, Surat	25950300008774
30	Bank of Baroda, Surat	25950300008786
31	Bank of Baroda, Surat	259S0300008791
32	Bank of Baroda, Surat	25950300008794
33	Bank of Baroda, Surat	25950300008795
34	Bank of Baroda, Surat	25950300008796
35	Bank of Baroda, Surat	25950300008800
36	Bank of Baroda, Surat	259S0300008801
37	Bank of Baroda, Surat	25950300008806
38	Bank of Baroda, Surat	259S0300008809
39	Bank of Baroda, Surat	25950300008811
40	Bank of Baroda, Surat	25950300008815
41	Bank of Baroda, Surat	25950300009646
42	Bank of Baroda, Surat	25950300009648
43	Bank of Baroda, Surat	25950300009656
44	Bank of Baroda, Surat	25950300009660

B. PARTICULARS OF INVESTMENT IN SHARES & SECURITIES AND SUBSIDIARIES

INVESTMENT IN SHARES & SECURITIES

SR. NO.	COMPANY NAME	ISIN	NO.OF SHARE
1	3M INDIA LIMITED	INE470A01017	204
2	ABBOTT INDIA LIMITED'	INE358A01014	253
3	ACC LIMITED	INE012A01025	1603
4	ALKEM LABORATORIES LIMITED	INE540L01014	1411
5	ASIAN PAINTS LIMITED	INE021A01026	1522
6	ASTRAZENECA PHAR (PHARMACEUTICAL)	INE203A01020	1527
7	ATUL LIMITED	INE100A01010	557
8	AVENUE SUPERMART LIMITED	INE192R01011	282

FOR DHANESH ENTERPRISE PVT. LTD.

DIRECTOR/AUTHORISED SIGNATORY

DHANESH ENTERPRISE PRIVATE LIMITED

Reg Office: S N No 192/1 192/2 193 And194 Udhna Navsari Road, Surat.
CIN: U45201GJ2003PTC042773
E-mail id: vinod@colourtex.co.in

SR. NO.	COMPANY NAME	ISIN	NO.OF SHARE
9	BAJAJ AUTO LIMITED	INE917I01010	1224
10	BAJAJ FINSERV LIMITED	INE918I01026	3299
11	BAYER CROPSCIENC	INE462A01022	940
12	BERGER PAINTS	INE463A01038	6832
13	BOSCH LIMITED	INE323A01026	276
14	BRITANNIA INDUSTRIES LIMITED	INE216A08027	226
15	BRITANNIA INDUSTRIES LIMITED	INE216A01030	1226
16	COLGATE-PALMOLIVIES(INDIA)LTD	INE259A01022	3065
17	CRISIL LIMITED	INE007A01025	1683
18	DIVI'S LABORATORY LIMITED	INE361B01024	1159
19	DR. REDDY'S LABORATORIES LIMITED	INE089A01023	1046
20	GILLETTE INDIA LIMITED	INE322A01010	816
21	GLAXOSMITHKLINE PHARMACEUITICAL IMITED	INE159A01016	3185
22	GUJARAT GAS LIMITED	INE844O01030	8239
23	HCL TECHNOLOGIES LTD	INE860A01027	4652
24	HDFC BANK LIMITED	INE040A01034	6221
25	HDFC LIFE INSURA	INE795G01014	7431
26	HINDUSTAN UNILEVER LIMITED	INE030A01027	1897
27	HONEYWELL AUTOMA	INE671A01010	108
28	ICICI LOMBARD GENERAL INSURANCE COMPANY LTD	INE765G01017	3594
29	INDIAN ENERGY EXCHANGE LIMITED	INE022Q01020	28795
30	INFOSYS LIMITED	INE009A01021	3364
31	JUBILANT FOODWORK LIMITED	INE797F01020	7752
32	KANSAI NEROLAC PAINTS LIMITED	INE531A01024	14247
33	KOTAK MAHINDRA BANK LIMITED	INE237A01028	2648
34	LARSEN AND TOUBRO LTD	INE018A01030	2603
35	MAHANAGAR GAS LIMITED	INE002S01010	5146
36	MARUTI SUZUKI INDIA LIMITED	INE585B01010	623
37	NESTLE INDIA LIMITED	INE239A01016	255
38	PETRONET LNG LIMITED	INE347G01014	20278
39	PFIZER LIMITED	INE182A01018	994
40	PIDILITE INDUSTRIES LIMITED	INE318A01026	2117
41	PROCTER & GAMBLE HYGINE & HEALTHCARE LTD	INE179A01014	325
42	RALLIS INDIA LIMITED	INE613A01020	18202
43	RELIANCE INDUSTRIES LIMITED	INE002A01018	165
44	SANOFI INDIA LIMITED	INE058A01010	672
45	SIEMENS LIMITED	INE003A01024	2035
46	SKF INDIA LIMITED	INE640A01023	1434
47	SUMITOMO CHEMICA INDIA LIMITED	INE258G01013	12201
48	TATA CONSULTANCY SRVICE LIMITED	INE467B01029	1426
49	TATA CONSUMER PRODUCT LIMITED	INE192A01025	6439
50	TITAN COMPANY LIMITED	INE280A01028	2285
51	ULTRATECH CEMENT LIMITED	INE481G01011	697
52	UPL LIMITED	INE628A01036	6660

FOR DHANESH ENTERPRISE PVT. LTD.

DIRECTOR/AUTHORISED SIGNATORY

DHANESH ENTERPRISE PRIVATE LIMITED
Reg Office: S N No 192/1 192/2 193 And194 Udhna Navsari Road, Surat.
CIN: U45201GJ2003PTC042773
E-mail id: vinod@colourtex.co.in

C INVESTMENT IN SUBSIDIARIES

Sr No	*Subsidiary/JV Company*	*Country*	*Nature of Shares*	*Number of Shares*	*Nominal Amt Per Share*	*RBI-UID Number*	*Tax Number in respected Contry*
1	COLTEX, S.A. DE C.V.	Honduras	Equity	1,83,600	100 HNL(Honduran Lempira) each	AHJAZ20150644	05119007082897
2	Colourtex (Asia Pacific) Limited	Hong Kong, China	Equity	1,95,000	1 HK$ (Hong kong Dollar) each	AHWAZ20160196	05/34631893
3	COLOURTEX PRODUTOS E SERVIÇOS LTDA.	Brazil	Equity	1,95,300	1 BRL (Brazilian Real) each	AHJAZ20150384	14.492.491/0001-40

PART V

A. REGISTRATION WITH VARIOUS AUTHORITIES UNDER RESPECTIVE LAWS, BODIES ETC. :

Name of Authority	Nature of registration	Registration Number
INCOME TAX DEPARTMENT	PAN	AADCM8190M
REGISTRAR OF COMPANY'S	CIN NO.	U45201GJ2003PTC042773
STOCK HOLDING CORPORATION OF INDIA LTD(NSDL)	DP ID CLIENT ID	IN301330 40486066

PART VI

A. VEHICLES:

There are no Vehicles

SIGNATURE OF THE DIRECTOR

DAHESH ENTERPRISE PRIAVTE LIMITED